

quently the case of *Doe v. Biggs* had no application, and the legal estate remained in the trustees (*d*).]

II. Of the *quantity* of legal estate taken by the trustee with reference to the object and scope of the trust.<sup>1</sup>

**General rules.** — As legal limitations are properly cognisable by a common-law court, it might be supposed that the construction put upon the instrument would stand wholly unaffected by the engraftment of a trust. But as the effect of the instrument is to be ruled by the intention, and as every person in limiting an estate to a trustee must be guided by the equity he proposes to raise upon it, the Courts as well of common law as of equity, and more particularly in the case of wills, have entered upon a consideration of the trust, in order to regulate within certain limits the extent of the legal interest by the scope and object of the equitable (*e*).

[(*d*) *Re Tanqueray-Willaume and Landau*, 20 Ch. D. 465.]

att, 17 Q. B. 292; *May v. Taylor*, 6 Man. & Gr. 261; *Walker v. Richardson*, 2 M. & W. 891.

(*e*) As to the cognisance of trusts by a Court of law, see *Sims v. Marry-*

<sup>1</sup> *Quantity of legal estate taken by trustee.* — Trustees hold in some cases no legal title, but merely a power of disposition; *Burke v. Valentine*, 52 Barb. 412; *Shelton v. Homer*, 5 Met. 462; *Bank v. Beverly*, 10 Pet. 532; *Deering v. Adams*, 37 Me. 264; in case of execution by the Statute of uses, only that estate passes which the trustee would take; *Baptist Soc. v. Hazen*, 100 Mass. 322; *Newhall v. Wheeler*, 7 Mass. 189; and the word "heirs" should be used; *Henderson v. Hunter*, 59 Pa. St. 335; but where the statute does not affect the trust, the trustee will take an estate commensurate in extent and duration with the object and extent of the trust; *Doe v. Ladd*, 77 Ala. 223; *Sears v. Russell*, 8 Gray, 86; *Zabriskie v. Railroad Co.* 33 N. J. Eq. 22; *Schaffer v. Lavretta*, 57 Ala. 14; *Brailsford v. Heyward*, 2 Desau. 290; *Gould v. Lamb*, 11 Met. 84; *Fisher v. Fields*, 10 Johns. 495; *Richardson v. Stodder*, 100 Mass. 528; *Newman v. Dotson*, 57 Tex. 117. "Wherever a trust is created, a legal estate, sufficient for the purposes of the trust, shall, if possible, be implied in the trustee, whatever may be the limitation in the instrument, whether to him and his heirs or not"; *Neilson v. Lagow*, 12 How. 98; *Packard v. Marshall*, 138 Mass. 301; *West v. Fitz*, 109 Ill. 425; *Barkley v. Dosser*, 15 Lea (Tenn.) 529; *Warner v. Sprigg*, 62 Md. 14; *Chamberlain v. Thompson*, 10 Conn. 244; *Powell v. Glen*, 21 Ala. 468; *Gill v. Logan*, 11 B. Mon. 233; *Webster v. Cooper*, 14 How. 499.

"Although a legal estate may be limited to a trustee to the fullest extent, as to him and his heirs, yet it shall not be carried farther than the complete execution of the trust necessarily requires." *Norton v. Norton*, 2 Sandf. 296; *Slevin v. Brown*, 32 Mo. 176; *Wilcox v. Wheeler*, 47 N. H. 488; *Williman v.*